

25CV02389 Southwood Financial LLC vs Fabiola Ibarra et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-17

Motion: Motion: Set Aside Default Judgment, etc

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Tentative Ruling: Southwood Financial LLC vs Fabiola Ibarra et al

Case Number

25CV02389

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/17/2026 - 10:00

Nature of Proceedings

Motion: Set Aside Default Judgment, etc

Tentative Ruling

Southwood Financial LLC v. Fabiola Ibarra, et al.

Case No. 25CV02389

Hearing Date: August 17, 2026

HEARING: Motion of Defendant Fabiola Ibarra to Set Aside Default, Vacate Judgment, and Stay Execution

ATTORNEYS: For Plaintiff Southwood Financial LLC as Trust Manager for Southwood Financial Trust I: Laura D'Anna, Nelson Ventura, Patenaude & Felix A.P.C.

For Defendant Fabiola Ibarra: Self-Represented

For Defendant Juvel Gonzalez: No appearance

TENTATIVE RULING:

For the reasons set forth herein:

Defendant Fabiola Ibarra's motion to set aside default, vacate judgment, and stay execution, is denied.

Background:

This action commenced on April 18, 2025, by the filing of the complaint by plaintiff Southwood Financial LLC as Trust Manager for Southwood Financial Trust I against defendants Fabiola Ibarra and Juvel Gonzalez for breach of contract.

Plaintiff alleges that defendants entered into a written contract with Sallie Mae Bank for an educational loan and that they purchased the debt owed by defendants. Plaintiff alleges that the last payment made by defendants was on February 22, 2023, and that there is an outstanding amount owing of \$6,903.75 in principal, \$718.83 in accrued interest, and a late fee in the amount of \$26.99, for a total of \$7,649.57.

Defendants were each served with summons and complaint on May 13, 2025.

On April 17, 2026, no answers to the complaint having been filed and served, plaintiff filed a request for entry of default and judgment, which was entered as requested.

On May 1, 2026, Judgment was entered in the total amount of \$7,471.57.

Also on May 1, 2026, Ibarra filed the present motion for order setting aside default, vacating judgment, and staying execution.

On August 3, 2026, plaintiff filed opposition to the motion.

Analysis:

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).)

Code of Civil Procedure section 473.5, subdivision (a) provides: "When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. . . ."

Pursuant to Code of Civil Procedure section 473.5, subdivision (b): "A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action."

The trial court has broad discretion to vacate the judgment and/or the clerk's entry of default that preceded it. However, "this discretion may be exercised only after the party seeking relief has shown that there is a proper ground for relief, and that the party has raised that ground in a procedurally proper manner, within any applicable time limits." (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.)

Unless the motion to set aside default is accompanied by an attorney affidavit of fault, which is not the case here, relief is discretionary, and the burden is on defendant to demonstrate mistake, inadvertence, surprise, or excusable neglect. (See Lorenz v. Commercial Accept. Ins. Co. (1995) 40 Cal.App.4th 981, 989.) The party moving for relief on the basis of "mistake, inadvertence, surprise, or excusable neglect" must show specific facts demonstrating that one of these conditions was met. (Hopkins & Carley v. Gens (2011) 200 Cal.App.4th 1401, 1410.)

Ibarra's declaration in support of the motion simply states that she is asking the court to set aside the default and default judgment, that she did not file a response to the summons and complaint, and: "I respectfully request that the Default be set aside, the attendant Default Judgment set aside, and that any execution on the Judgment be stayed. I would like to be able to arrange a payment plan or other settlement without the need for further Court proceedings."

Entirely absent from the declaration, and all other parts of the motion, are any explanations as to why Ibarra did not answer the complaint. She does not meet her burden of demonstrating mistake, inadvertence, surprise, or excusable neglect. Under these circumstances, the court cannot grant the relief that Ibarra is requesting, and the motion must be denied.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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